



## **WIN Television Network – NBN Enterprises & Television Holdings Darwin**

MN-50008

# **Phase 1 Determination**

**Acquisition may be put into effect**

18 May 2026

# 1. Determination and statement of reasons

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| <b>Notified acquisition</b>        | WIN Television Network Pty Ltd ( <b>WIN TV</b> ) proposes to acquire 100% of the shares in NBN Enterprises Pty Limited ( <b>NBN</b> ) from Nine Network Australia Holdings Pty Ltd and 100% of the shares in Television Holdings Darwin Pty Limited ( <b>NTD</b> ) from Nine Network Australia Pty Limited (the <b>Acquisition</b> ).                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>Determination</b>               | The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>Parties to the Acquisition</b>  | <p>The acquirer, WIN TV, is the parent company of a group of wholly owned subsidiaries with broadcast free-to-air television in different licence areas throughout regional Australia. WIN TV acquires the majority of its content for broadcast through an affiliate relationship with the Nine Group.</p> <p>The targets, NBN and NTD, operate regional free-to-air television stations, with NBN broadcasting across the Northern New South Wales and Gold Coast region and NTD broadcasting to Darwin, Palmerston and the surrounding areas in the Northern Territory. Both NBN and NTD currently broadcast a combination of content produced by the Nine Group, together with locally produced content.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>Overlap between the parties</b> | There is no geographic overlap between the local broadcasting areas of WIN TV, NBN and NTD.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>Reasons for determination</b>   | <p>When making a determination in Phase 1, the Australian Competition and Consumer Commission (<b>ACCC</b>) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.</p> <p>For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's <a href="#">merger assessment guidelines</a> and <a href="#">interim merger process guidelines</a>.</p> <p>In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties, and publicly available information.</p> <p>The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.</p> <ul style="list-style-type: none"> <li>• There is no overlap between the Parties as they operate in different geographic areas.</li> <li>• The Parties would likely continue to face competition from multiple alternative suppliers of broadcasting and advertising in those regional areas in Australia, including by Seven Network and Ten Network.</li> </ul> |

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| <b>Applications for review</b> | A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal. |
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**